

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

8. ASHLEY HIGHTREE V. JEFFREY MCQUARY

25FL0021

On November 13, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as child support orders. She filed her Income and Expense Declaration concurrently therewith and the parties were referred to Child Custody Recommending Counseling (CCRC). Both documents were served on November 18, 2025, however there is no indication that the CCRC referral was served and Respondent did not appear at the scheduled CCRC appointment.

On December 19, 2025, Petitioner filed and served a Declaration of Ashley Hightree in Support of Request for Visitation Orders.

The parties attended CCRC on March 13, 2026 and were able to reach agreements as to custody and visitation. A report codifying those agreements was prepared and mailed to the parties the same day.

On March 25th, Petitioner filed another RFO seeking attorney's fees and a continuance of the trial date. She concurrently filed a Declaration of Attorney Rebecca Esty-Burke in Support of Petitioner's Request for Order. All required documents, with the exception of the Notice of the Tentative Ruling, were served on April 8th. While this generally would have been untimely service, Petitioner obtained ex parte leave to have the matter heard on a shortened basis. The request was granted and Respondent's time to file a responsive declaration was extended to April 20th.

Respondent filed and served a Responsive Declaration to Request for Order on April 14th.

Respondent filed another Responsive Declaration to Request for Order on April 16th though there is no Proof of Service for this document therefore the court has not read or considered it.

After reviewing the filings as outlined above, the court finds the agreements contained in the March 13, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court.

Moving to the issue of child support, "[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). Here, while Petitioner did file her Income and

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Expense Declaration with her initial moving papers, however the declaration is now out of date and she has not filed an updated one. Accordingly, the request for child support is denied without prejudice.

Likewise, the request for need-based attorney's fees is also denied without prejudice. A request for attorney's fees under Section 2030 requires the court to make findings as to a disparity in income and ability to pay. To assist the court in making such findings, the requesting party is to provide the court with a current Income and Expense Declaration. Without that the court cannot make the required determinations and the request is therefore denied without prejudice.

The request to vacate the trial date is granted. The trial, which is currently set to commence on June 1, 2026, and the corresponding May 11th settlement, are both vacated. The court is not rescheduling either date at this time given the pending bankruptcy proceedings.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: THE REQUESTS FOR CHILD SUPPORT AND ATTORNEY'S FEES ARE DENIED WITHOUT PREJUDICE DUE TO PETITIONER'S FAILURE TO FILE A CURRENT INCOME AND EXPENSE DECLARATION. THE COURT IS ADOPTING THE AGREEMENTS OF THE PARTIES AS STATED IN THE MARCH 13, 2026 CCRC REPORT AS THE ORDERS OF THE COURT. THE REQUEST TO VACATE THE TRIAL DATE IS GRANTED. THE TRIAL, WHICH IS CURRENTLY SET TO COMMENCE ON JUNE 1, 2026, AND THE CORRESPONDING SETTLEMENT CONFERENCE, WHICH IS SCHEDULED OF MAY 11, 2026, ARE BOTH VACATED. THE COURT IS NOT RESCHEDULING EITHER DATE AT THIS TIME GIVEN THE PENDING BANKRUPTCY PROCEEDINGS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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9. SARAH MACCHIA V. GEORGE MACCHIA

22FL1202

Petitioner filed a Request for Order (RFO) on February 6, 2026 seeking spousal support. The RFO was personally served along with the Notice of Tentative Ruling on March 27th. Petitioner filed her Income and Expense Declaration on February 2nd, however there is no Proof of Service for this document therefore the court cannot consider it.

“For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, while Petitioner did file an Income and Expense Declaration days prior to filing her RFO, because it was never served, the court cannot consider it and therefore it does not satisfy the procedural requirements as set forth in Rules of Court rule 5.260(1), Family Code § 2100, and County Rule 8.03.01. Accordingly, the RFO is denied due to failure to serve the required documents.

TENTATIVE RULING #9: THE RFO IS DENIED DUE TO FAILURE TO SERVE THE REQUIRED INCOME AND EXPENSE DECLARATION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.